

TOME II

The Sea and the Land

Nabek — Off the Ship

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Admiralty law, Two-Row Wampum, and the Proclamation of 1763

SECOND PART

The Sea and the Land

One must understand one essential thing. For me, what is called law comes from the sea. They are merchant laws, born from the ports. Admiralty law. Law merchant. The law of ships, of cargoes, of contracts signed between shipowners. It is a language of cargo. It deals with goods, debts, insurances. It does not deal with the living. It deals with —

When the settlers arrived, they brought this language with them. They disembarked with their registers, their numbers, their notarized deeds. They placed their grimoires upon the land without asking the land if it understood. They said: here is property. Here is contract. Here is the State. And the land answered with silence. Because the land does not speak the language of the ports. It speaks the language of seasons. It speaks the language of relationships. It speaks the language of —

I live on land. The land has no register. It has relationships. It has cycles. It has responsibilities. When I walk upon this land, I do not walk upon a property. I walk within a relationship. The land carries me. I respect it. That is all. There is no deed of ownership between us. There is no contract. There is trust. There is time. There is —

The Two-Row Wampum, that is what it is. It is not a contract. It is not a treaty in the sense of the sea. It is a commitment to coexistence. Two vessels — a canoe, a ship — that navigate side by side on the river of life, without steering one another. Neither domination, nor assimilation. Each people keeps its laws, its language, its sovereignty. The three white rows symbolize peace, friendship, and respect. Not as gestures of charity, but as conditions of —

We welcomed the settlers through this Wampum. We invited them. We said: here is the river, here is the land, let us live side by side without seeking to possess the other. And they said yes. Then they pretended —

In 1763, men in wigs, in robes, made-up, signed a so-called Royal Proclamation. They wrote: only lands ceded by treaty may be occupied. Then they ignored it. They pretended to forget. They counted on the people never verifying. And time passed. But time does not erase the land. The land remembers. The rivers

remember. The stones remember. And I, I —

I claim no rights. Rights are commodities of the sea. I am free. My freedom does not come from a grimoire. It comes from existence itself. It comes from the fact that I was born of my mother, on this land, in the relationship. Freedom is not a right that is granted. It is a condition of the living. The bird needs no permit to fly. The tree needs no license to grow. The river needs no authorization to flow. And I, I need no number to —

When they tell me I have rights, I answer that I have a life. When they tell me I have duties as a citizen, I answer that I have responsibilities as a man. Responsibility is stronger than obligation. Relationship is stronger than contract. Presence is stronger than claim. Silence is stronger than —

Imagine.

Men in wigs,

in robes, made-up

in 1763,

Who signed a so-called

Royal Proclamation!!

which said:

Only lands ceded by treaty may be occupied!

Then they ignored it.

pretended to forget.

they counted on the people

never verifying.

And time —

All this fine world in disguise who said

Empty lands are for —

Except they were not —

They were —

Of—

Of—

Of—

Of —

That you still attempt

today to —

With —

Masters in our own house!!!

You who prefer

The illusion of —

The illusion of —

The illusion of —

The illusion of —

The illusion of being something, of importance?

Lives wind of a world —

The law as spell

what am I saying?

Privilege!!

Makes believe

cage is protection.

enchantment,

en vault ment,

in you lie.

enchantment —

Caught in a contract one did not sign,

that one continues to honor through indolence,

through expense,

through the indignation of —

The police as guardian of the herd.

As protection of profit.

As what strikes those who claim a roof,

while the fund-eaters

count their —

Denial alienation abnegation.

First one denies.

Then one becomes a stranger to oneself.

Then one abandons all will.

That we all propagate.

The virus of silence.

Of complicity.

Of —

For we no longer wish to go deeper

than what the fund-eaters let us hear

Those who eat the fund.

Who eat the base.

Who eat the soil

until nothing remains for the —

For you live only under the reign of the NAME.

The Name as mark.

As sign.

What replaces being with the bedridden person,

the number,

the signature.

You are the first to have it deep.

As violence.

As forced penetration.

As what one endures without consent,

WHAT THE JUDGMENTS ADD TO THIS ILLUSION

I say that law is a spell, an illusion of protection that hides a cage. The judgments, for their part, describe the —

In 1943, *Murdock v. Pennsylvania* (319 U.S. 105) struck down a license tax required to preach. The Court said that requiring permission to exercise what is fundamental is to transform it into a privilege. And a privilege can be withdrawn. When I refuse to ask permission to exist, I do nothing but claim — no, I live — what the law has already recognized: a freedom is not a commodity that one —

In 1969, *Shuttlesworth v. Birmingham* (373 U.S. 262) went further: if the State converts a freedom into a privilege, the citizen may ignore it. The word is there. Ignore. When I withdraw my consent, I invent nothing. I exercise an option that the law itself has left —

In 1925, *Sims v. Aherns* (271 S.W. 720) said that exercising a profession, like law, is a common right, not a privilege granted by the State. The right to work, to travel, to exist in one's daily choices precedes all —

In 1969, *Shapiro v. Thompson* (394 U.S. 618) and the *Chicago Motor Coach* case established the right to travel freely. Not on approved roads. Not with a permit. Freely. Travel is a freedom, not a —

But I repeat: I do not claim these rights. I cite them to show that even within their own rules of the game, the game is rigged. They say that freedom precedes the State, then they demand a permit to breathe. They say that the road is free, then they put up barriers. They are magicians who pretend to open the cage while closing the —

I no longer play. I leave the cage. I do not ask for the key. I know that the cage exists only if I stay —